

IN THE HIGH COURT OF MADHYA PRADESH
AT JABALPUR

(WRITE JURISDICTION)

Case No.: WP/1234/2024

Date of Order: 15th March, 2024

PARTIES TO THE PETITION

Petitioner	Rajesh Kumar
Respondent No. 1	State Government of Madhya Pradesh
Respondent No. 2	Finance Department, Government of M.P.

Coram: Hon'ble Justice A.B. Sharma

I. BACKGROUND OF THE PETITION

The Petitioner, Shri Rajesh Kumar, has filed the present Writ Petition under Article 226 of the Constitution of India, seeking a writ of mandamus or any other appropriate writ, order, or direction directing the Respondents to forthwith release all pending salary dues and retirement benefits lawfully due and payable to the Petitioner, which have remained undisbursed despite multiple written representations and reminders made to the competent authorities.

Notice was issued to the Respondents. The Respondents have filed their reply. Heard learned counsel for the parties and perused the records.

II. FINDINGS OF THE COURT

Upon careful consideration of the submissions advanced by the learned counsel for both parties and on perusal of the relevant records and documents placed before this Court, it is apparent that:

- The salary dues and retirement benefits of the Petitioner are legally due and payable as per the applicable service rules and regulations.
- The inordinate and unexplained delay caused by the Respondents in releasing the rightful dues of the Petitioner is wholly unjustified and is contrary to law.

(c) Such arbitrary inaction on the part of the Respondents constitutes a violation of the Petitioner's fundamental rights guaranteed under Article 21 of the Constitution of India and his statutory entitlements under the relevant service rules.

III. COURT DIRECTIONS / OPERATIVE ORDER

In view of the aforesaid findings, this Court passes the following directions:

1.	The Respondent No. 2, Finance Department, Government of Madhya Pradesh, is hereby directed to forthwith release all pending salary dues and retirement benefits lawfully due and payable to the Petitioner, Shri Rajesh Kumar, in full, without any further delay or deduction.
2.	The aforesaid payment shall be completed within a period of Thirty (30) days from the date of receipt of a certified copy of this order.
3.	The Respondents shall submit a compliance report before this Court within Forty-Five (45) days from the date of this order.
4.	In the event of non-compliance with this order within the stipulated period, the Petitioner shall be at liberty to approach this Court by filing an appropriate application for initiation of contempt proceedings under the Contempt of Courts Act, 1971.

IV. ADDITIONAL OBSERVATIONS

(i) This Court does not impose any penalty or cost on the Respondents at this stage, however, any further non-compliance shall be viewed seriously.

(ii) A duly authenticated compliance report confirming execution of the above directions shall be filed before the Registrar (Judicial) of this Court within the prescribed period.

FINAL ORDER

In view of the above, the present Writ Petition (WP/1234/2024) is hereby **ALLOWED** with the directions as enumerated hereinabove. No order as to costs. The petition stands disposed of accordingly.

(A.B. Sharma)
Hon'ble Justice A.B. Sharma
High Court of Madhya Pradesh
Date: 15th March, 2024

TRUE COPY
Registrar (Judicial), High Court of Madhya Pradesh